

SENATE No. 1408

The Commonwealth of Massachusetts

PRESENTED BY:

Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing appropriate care for certain populations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>

SENATE No. 1408

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 1408) of Robyn K. Kennedy and Michael D. Brady for legislation to provide appropriate care for certain populations. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1258 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing appropriate care for certain populations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 123 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following definition:-

3 “Forensic Unit”, a physically separate unit from other units. These units shall have in
4 place restrictions consistent with those present when an individual is incarcerated. These units
5 shall include appropriate staffing levels to address the needs of the patient population and who
6 have undergone specialized training to work effectively with this patient population. The
7 physical environment of the unit shall be conducive to meeting the needs of the patient
8 population.

SECTION 2. Section 15 of said Chapter 123, as so appearing, is hereby amended by adding the following paragraph:-

(g) any individual admitted to a facility under the conditions described in paragraph (b) or paragraph (e) shall be initially admitted to a forensic unit.

SECTION 3. Section 16 of said Chapter 123, as so appearing, is hereby amended by adding the following paragraph:-

(g) any individual admitted to a facility under the conditions described in paragraph (a), (c) or paragraph (e) shall be initially admitted to a forensic unit.

SECTION 4. Section 18 of said Chapter 123, as so appearing, is hereby amended by adding the following paragraph:-

(e) any individual admitted to a facility under the conditions described in paragraph (a) or paragraph (b) shall be initially admitted to a forensic unit.